

HEADNOTE

- “1) Limiting a counterclaim for revocation by making it conditional upon a finding of infringement is permissible.*
- 2) There is a need for clarification on such a conditional counterclaim if and when the infringement claimant appeals from a finding of non-infringement by the Court of First Instance.*
- 3) In the event of an appeal by the infringement claimant, the counterclaimant may appeal against the Court of First Instance’s decision not to decide on the counterclaim for revocation. Even though upon a finding of non-infringement a decision not to decide on the counterclaim is in accordance with the counterclaimant’s request, the (conditional) counterclaimant must nevertheless be considered to have a legitimate interest in an appeal since, if the Court of Appeal were to overturn the Court of First Instance’s decision and finds an infringement, the condition would be fulfilled and the decision of the Court of First Instance holding that the condition was not fulfilled must be set aside.*
- 4) The counterclaimant may lodge an appeal pursuant to R. 220.1(a) RoP under the condition that the infringement claimant lodges an appeal against the decision in the infringement action. Once an appeal in the infringement action is lodged, the applicable (regular) appeal fee must be paid. If no appeal against the decision in the infringement action is lodged, the condition under which the appeal in the counterclaim for revocation action was lodged is not fulfilled, the appeal is considered to be not lodged and no appeal fees shall be due.*
- 5) On appeal, the counterclaim for revocation remains conditional, unless the counterclaimant would request to remove the condition and pursue its claim unconditionally. Such a request will then be subject to leave to change claim pursuant to R. 263 RoP by analogy, and R. 222.2 RoP.*
- 6) If the condition to which the counterclaim for revocation action is subjected is fulfilled due to a finding of infringement by the Court of Appeal, the Court of Appeal shall as a rule not refer the counterclaim back to the Court of First Instance, but shall decide on it, in accordance with Art. 75(1) UPCA and R. 242.2(b) RoP, last sentence.”*

COURT

Court of Appeal Luxembourg

PATENT

EP 2 129 425

KEYWORDS

conditional counterclaim for revocation

refer back

PROCEEDINGS

Counterclaim for revocation

Embollic protection device

Rule 220

Appealable decisions

SUMMARY

The Court of Appeal Luxembourg ruled on a counterclaim for revocation. The patent at issue relates to an embolic protection device. According to the headnotes of the decision, a party may limit a counterclaim for revocation by making it conditional upon a finding of infringement. When the infringement claimant appeals a non-infringement decision, the counterclaimant has a legitimate interest in appealing the Court of First Instance's decision not to decide the conditional counterclaim, since an appeal reversal could fulfil the condition. A counterclaimant may lodge a conditional appeal under the Rules of Procedure, but the appeal fee becomes due only if the infringement claimant actually lodges an appeal, and if no such appeal is filed, the conditional appeal is deemed not lodged. On appeal, a conditional counterclaim remains conditional unless the counterclaimant requests to remove the condition, which request is subject to the standard rules governing amendments to claims. When the Court of Appeal finds infringement and thus fulfils the condition, it shall generally decide the counterclaim itself rather than referring it back to the first instance court.